



Agent: Insurent Agency Corporation
122 East 42nd Street, Suite 3600
New York, NY 10168
Tel: (212) 295-5000

No: 1246130-EST001NY201W91002519

Tenant Participation Agreement

Thank you for participating in the Lease Rental Bond Program offered by Argonaut Insurance Company (the “Insurer”) through Insurent Agency Corporation (the “Agent”). This Agreement (this “Agreement”) sets forth the terms and conditions of your relationship with the Insurer and the Agent, and your and their respective obligations. The parties to this Agreement are:

- (a) the Insurer;
- (b) you, the undersigned Tenant; and
- (c) if applicable, the undersigned Responsible Party (the “Responsible Party”).

In this Agreement, the terms “you”, “your”, “me”, “I”, “my” and “mine” refer to you, the undersigned Tenant.

This Agreement applies to the Lease (as defined below) commencing on 6/24/2026 and to expire on 6/30/2027 for the rental of the following apartment (the “Apartment”): 502, 201 West 95th Street, New York, New York 10025 and is made as of the date set forth below.

PLEASE ACKNOWLEDGE THAT YOU HAVE READ AND AGREE TO THE FOLLOWING IMPORTANT TERMS BY INITIALING EACH PARAGRAPH:

- _____ I understand that this Agreement and the issuance of a Lease Rental Bond Policy (as defined below) will not under any circumstance relieve me of my obligation to pay rent for the Apartment, and will not protect me from or prevent an eviction if I do not pay my rent.
- _____ I understand that if I do not pay my rent, or meet my other obligations to the Property Management Company (as defined below), the Property Management Company may make a claim under the Lease Rental Bond Policy. If such a claim is paid by the Insurer, I agree that I will reimburse the Insurer for all amounts that the Insurer has paid to the Property Management Company as a result of a claim made under the Lease Rental Bond Policy. The Insurer has the right to sue me to collect those amounts, and I will be obligated to pay any attorneys fees and expenses incurred by the Insurer to collect those amounts. I understand that I have waived my right to a jury trial in any such lawsuit, and as a result, I will not be entitled to a jury trial in any such lawsuit.
- _____ I understand that the coverage provided by the Lease Rental Bond Policy is solely for the benefit of the Property Management Company, and that I have no right to seek any benefits from or payments under the Lease Rental Bond Policy.

- _____ I understand that Insurent® is not my agent or representative, and that Insurent® is not acting on my behalf. I also understand that Insurent® is the agent and representative of the Insurer, and that any assistance provided to me by Insurent® was provided on behalf of the Insurer, solely for the purpose of facilitating my purchase of a Lease Rental Bond Policy.
- _____ I understand that if I do not pay my rent, Insurent will report this information to the three major credit bureaus: Equifax, Experian and Trans Union.
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RECITALS

A. I would like to enter into a lease for the Apartment, but have been informed by the property owner (the **"Property Management Company"**) that I do not meet the Property Management Company's qualifications for a lease; and

B. I understand that I will qualify to enter into a lease for the Apartment (the **"Lease"**) if my performance under the Lease is guaranteed by a third party acceptable to the Property Management Company; and

C. I would like to utilize the services of the Agent to arrange for the purchase of a Lease Rental Bond Policy guarantying my performance of the Lease; and

D. I have submitted an application to purchase a Lease Rental Bond Policy (**"the Application"**), and have been notified by the Insurer or the Agent that my Application has been approved.

TERMS AND CONDITIONS OF THIS AGREEMENT

In consideration of the payment of the Premium (as defined in Section 3 below), and the mutual promises and covenants set forth herein, the parties agree as follows:

1. Issuance of Lease Rental Bond Policy. The Insurer agrees that upon my (a) paying the Premium, and (b) entering into a Lease with the Property Management Company and making any required payments in connection with the Lease (including but not limited to

payment of the first month's rent or a security deposit), the Insurer will issue a Lease Rental Bond Policy to the Property Management Company guaranteeing my performance under the Lease as set out in that Lease Rental Bond Policy (the "**Lease Rental Bond Policy**"). A copy of the Lease Rental Bond Policy is attached to this Agreement, and I represent to the Insurer that I have read and understand the terms of the Lease Rental Bond Policy.

2. Accuracy of Information. I represent and promise that (a) all information that I provided to the Insurer in the Application continues to be true and complete, and (b) I will immediately notify the Insurer if as a result of subsequent events any of the information I provided to the Insurer in the Application ceases to be true or complete.

3. Premium. The Premium is \$2,460.00 and is an amount equal to 8.20% of the annual base rent (exclusive of security deposits and any other fees and charges) pursuant to the Lease. I agree and understand that the Premium is a one-time flat fee payment for the Lease Rental Bond Policy, and is earned when paid, and is not subject to refund or adjustment for any reason unless (a) expressly set forth in this Agreement or the Lease Rental Bond Policy, or (b) required by applicable law. The Premium is not intended as, nor is it to be construed as, a payment to the Property Management Company, and will not for any purpose be considered a payment of rent or other consideration to the Property Management Company.

4. Obligation to Pay the Property Management Company. I UNDERSTAND, AND EXPRESSLY AGREE AND ACKNOWLEDGE, THAT ANY ASSISTANCE PROVIDED TO ME BY THE PROPERTY MANAGEMENT COMPANY AND THE AGENT IN CONNECTION WITH MY PURCHASE OF A LEASE RENTAL BOND POLICY FROM THE INSURER, AND THE ISSUANCE BY THE INSURER OF THE LEASE RENTAL BOND POLICY, DOES NOT IN ANY WAY RELIEVE ME OF ANY OF MY OBLIGATIONS TO MAKE PAYMENTS TO THE PROPERTY MANAGEMENT COMPANY UNDER THE LEASE. Specifically with respect to rent, during the term of this Agreement I understand and agree that I am obligated to pay rent to

the Property Management Company pursuant to the terms of the Lease, and that nothing contained herein or in the Lease Rental Bond Policy is intended to excuse me, or is to be construed as excusing me, from my rent obligation under the Lease. I acknowledge that the Insurer is not a party to the Lease, and that I negotiated the terms of the Lease directly with the Property Management Company, and that neither the Insurer nor the Agent were or are parties to the negotiations or the Lease.

5. Nature of Lease Rental Bond Policy. I acknowledge and agree that the Lease Rental Bond Policy is purchased for the benefit of the Property Management Company that allows me to qualify to enter into the Lease. I further acknowledge and agree that I have no rights or obligations under the Lease Rental Bond Policy. I expressly acknowledge and agree that I am not a third-party beneficiary, insured party, or any other type of beneficiary with standing or capacity to receive any benefits under the Lease Rental Bond Policy. In order to induce the Insurer to enter into this Agreement, I agree that I will not, under any circumstance, claim any benefit under the Lease Rental Bond Policy.

6. Reimbursement Obligation. I understand that if I fail to meet certain obligations under the Lease, the Property Management Company will have the right to make a claim under the Lease Rental Bond Policy. For each claim that is made to and paid by the Insurer, I will immediately reimburse the Insurer for the amount of the claim paid to the Property Management Company under the Lease Rental Bond Policy. I understand and agree that my obligation to reimburse the Insurer in the event a claim is paid is entirely independent of any rights or obligations I may have under the Lease. Within ten (10) days of the mailing of a written demand for reimbursement by or on behalf of the Insurer, I will immediately reimburse the Insurer for all amounts paid by the Insurer to the Property Management Company (the “**Reimbursement Payment**”). Any demand for reimbursement will be mailed to me via overnight delivery service at the address set forth below (or to any other address that the Insurer or its agents may have in

its records for me). In the event that I fail to make the Reimbursement Payment, the Insurer will have the right to commence a lawsuit against me and may recover the amount of the Reimbursement Payment plus all attorneys fees and costs of collecting the Reimbursement Payment. I AGREE THAT (A) SERVICE OF PROCESS IN ANY LAWSUIT TO COLLECT THE REIMBURSEMENT PAYMENT MAY BE MADE BY CERTIFIED MAIL, RETURN RECEIPT REQUESTED OR OVERNIGHT DELIVERY (AT THE INSURER'S SOLE OPTION) TO THE ADDRESS FOR NOTICES SET FORTH BELOW, AND (B) I HEREBY WAIVE THE RIGHT TO A JURY TRIAL IN ANY SUCH LAWSUIT.

7. Responsible Party. By signing where indicated below, the Responsible Party agrees to be jointly and severally liable with me, the undersigned Tenant, for any and all economic obligations set forth in this Agreement. The Responsible Party agrees to the terms and conditions set forth in paragraph "6" above regarding any demand for reimbursement, including but not limited to (a) the obligation to pay the Insurer's attorneys fees and expenses, (b) accepting service of process by certified mail, return receipt requested or overnight delivery service in the event a lawsuit is commenced, and (c) waiver of the right to a jury trial.

8. Co-Tenants. If I am sharing the Apartment with one or more co-tenants, I understand and agree that the Insurer will be able to seek the full performance of all obligations under the Lease and this Agreement from me, even if a co-tenant may be responsible for a failure to perform any Lease obligation or obligation under this Agreement.

9. Books and Records. Promptly upon receipt of a written request by the Insurer, I will provide copies of all documents concerning the Lease to the Insurer, including but not limited to documents related to rent, security deposit, and physical damage payment records and correspondence with the Property Management Company.

10. Term. This Agreement and the coverage described in the Lease Rental Bond Policy will not under any circumstance apply to any extensions of the term of or renewals of the Lease. In the event that the Lease is terminated by the Property Management Company prior to its expiration for any reason, neither I, the undersigned Tenant, nor the Responsible Party will be entitled to any refund or rebate of the Premium, unless otherwise required by law. The reimbursement obligation set forth in paragraph "6" above will survive any expiration of this Agreement.

11. Notices. Notices by any party to any other party may be delivered by hand, by certified mail, return receipt requested, or by overnight delivery service, at the addresses stated below.

12. Acknowledgement. As a material inducement to the Insurer, I acknowledge and represent that I am entering into this Agreement of my own free will, without coercion or undue influences of any type whatsoever. After reviewing this Agreement, the Lease Rental Bond Policy, and taking all relevant factors into consideration, I have decided to enter into this Agreement so that I may qualify to lease the Apartment, and neither the Insurer nor the Agent has participated in or influenced that decision in any way.

13. Governing Law. This Agreement will be interpreted in accordance with the laws of the State of New York, without regard to principles of conflicts of law.

14. Miscellaneous. Any amendments or modifications to this Agreement will only be effective if they are in writing and signed by the person against whom enforcement of the amendment or modification is sought. No oral modifications or waivers of any of the requirements of this Agreement will be effective.

This Agreement reflects the full and complete agreement of the parties with respect to my purchase of a Lease Rental Bond Policy from the Insurer through the Agent.

ARGONAUT INSURANCE COMPANY

By: 

President

Date: June 23, 2026

By: 

Sammy Abdella

Date: _____

By: _____
Nancy Wu Sun
Responsible Party

Date: _____

SIGNATURE PAGE

IN WITNESS WHEREOF, the company issuing this policy has caused this policy to be signed by its President and its Secretary and countersigned (if required) on the Declarations page by a duly authorized representative of the company. This endorsement is executed by the company stated in the Declarations.

Argonaut Insurance Company



President



Secretary